

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC051716: INFORMED MEDICAL LLC vs NAKED VENTURES LLC

09/16/2026 in Department 21

Motions to be Relieved as Counsel for Naked Apps LLC, Naked Ventures, LLC, and John Driscoll

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.) If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions: Motions by Attorney/Firm Matthew E. Hess, Esq. from the firm Matthew E. Hess, Attorney at Law, (“Moving Attorney”) to be relieved as counsel for:

- (1) Defendant Naked Apps, LLC (*unopposed*);
- (2) Defendant Naked Ventures, LLC (*unopposed*); and
- (3) Defendant John Driscoll (*unopposed*).

Tentative Ruling: Moving Attorney’s three motions to be relieved as counsel are GRANTED. Counsel’s withdrawal will be effective as of the date of filing the proof of service of the signed Order upon defendants at their last known address. (Cal. Rules of Ct., rule 3.1362(e).) Moving party to give notice of this Court’s ruling.

Background: This is an action for breach of lease and related claims. The next scheduled event is the mandatory settlement conference scheduled for 1/21/27 at 10:00 a.m. Trial is scheduled for 3/1/27 at 1:30 p.m.

Discussion:

Procedural Requirements: The moving papers are procedurally proper.

Merits: An attorney may withdraw at any time “[u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (CCP, § 284.)

Rules of Professional Conduct, Rule 1.16(b)(4) allows an attorney to withdraw when “the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.”

Rules of Professional Conduct, rule 1.16(d) states: “A lawyer shall not terminate a representation until the lawyer has taken reasonable* steps to avoid reasonably* foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel.”

Here, the facts in the declarations support granting the motions.

Therefore, the motions will be granted.